ARGYLE FARM (PVT) LIMITED

Versus

MUNICIPALITY OF CHINHOYI

And

SIMON MARARA

And

THE DEPUTY SHERIFF FOR CHINHOYI

HIGH COURT OF ZIMBABWE

CHIRAWU-MUGOMBA J

Harare, 25 September 2025, 4, 15, 18 and 19 February 2026.

ADVOCATE D. OCHIENG, for the applicant

C. WARARA, for the 1st and 2nd respondents

CHAMBER APPLICATION FOR CONTEMPT OF COURT

CHIRAWU-MUGOMBA J: The roots of this matter lie in a judgment of this honourable court of the 9th of May 2024 per MUNANGATI-MANONGWA under HH 172-24 emanating from HCH-1244/23 and pitting the current applicant and the first respondent. In that matter, the applicant sought a vindicatory order to recover possession and control of property called the remainder of Umzari situate in the district of Lomagundi under deed of transfer 169/69 (the 'property'). Alternatively, the applicant sought damages in the sum of USD$ 6, 900,000 (six million Nine Hundred Thousand United States Dollars only). The applicant in *casu* seeks an order of contempt against the first and second respondents for non-compliance with the order in HCH-1244/23. The catch is that the applicant seeks the order based on the main relief. At the hearing of the 25th of September 2025, I gave an order directing the parties to file supplementary heads of arguments to address the following issues:-

a. Competency of a court to issue an order in the main and alternative relief?

b. Can applicant pick and choose the relief it wants enforced?

c. Implications of an order in the main and in the alternative on contempt of court proceedings.

The court in HCH-1244/23 granted the following extant order.

Accordingly, the following order is granted:

1. The respondent shall, within six months of the date of this order, restore the applicant full and unhindered possession of a certain 251.0353 hectares of land called the remainder of Umzari situate in the district of Lomagundi (the "property'').

2. The respondent shall at its own expense, cause publication of the terms of this order within ten days of its grant and not less than once weekly for three consecutive weeks thereafter:

   a. In a national newspaper that enjoys wide circulation in the Mashonaland West Province of Zimbabwe;

   b. On its website and social media pages; and

   c. On all notice boards upon which it customarily broadcasts significant messages to the residents of the area over which it has jurisdiction.

3. The respondent shall, at its own expense, cause the removal of all persons occupying the property through it not later than six calendar months after the date of this order.

4. If the respondent shall default in compliance with para 3, the Sheriff shall thereafter be mandated to eject all persons occupying any part of the property without the consent of the applicant.

5. The respondent shall bear the applicant's costs of suit.

Alternatively;

1. The respondent shall pay the applicant the sum of USD$ 6 900.000 (Six million Nine Hundred Thousand United States Dollars).

2. Within seven days after payment of the sum set out in para 1 (or within seven days of full recovery consequent upon execution by the Sheriff, as the case may be), the applicant shall tender transfer to the respondent of a certain 251. 0353 hectares of land called the remainder of Umzari situate in the district of Lomagundi (‘’the property’’).

3. The respondent shall bear the costs of transfer contemplated by para 2 of this order.

4. The respondent shall bear the applicant’s costs of suit.

I now turn to the background of this matter. The applicant avers that the order in question was brought to the attention of the first respondent. There is a previous order in respect of the property obtained under HCH 8049/14 regulating ownership in favour of the applicant. The first respondent encouraged various persons to occupy the property and construct various buildings thereupon without having lawfully acquired the property. The first respondent added to the numbers by creating unlawful subdivisions. This led the applicant to seek the vindicatory relief. The applicant has not elected to enforce the alternative relief. Following the grant of the relief, the applicant and the first respondent engaged inconclusively with a view to a possible settlement. This was on a without prejudice basis. The Ministry of Local Government and Public Works also got involved but this came to naught. The first respondent has simply not heeded the main relief. The applicant thus seeks an order as follows.

1. It is declared that the First and Second Respondents are in contempt of the order of this honourable court granted at Harare under Case No HCl244l23 and dated 9 May 2024 ("the infringed order").

2. The Second respondent is sentenced to serve thirty days' imprisonment, wholly suspended for seven days on condition that he shall, within the said seven days, cause full compliance with paragraph 2 of the infringed order and submit evidence thereof to the Registrar. If the First and Second Respondents

shall remain in contempt of the infringed order until the completion of the sentence imposed by paragraph 2 of this order, the applicant shall thereafter be entitled to itself cause the publications contemplated by paragraph 2(a) of the infringed order.

3. Within thirty days of the last publication effected pursuant to paragraph 2 or paragraph 3 of this order, as the case may be, the third respondent shall commence the eviction mandated by paragraph 3 of the infringed order. 5. The first and second respondents shall bear the applicant's costs of this application on the legal practitioner and client scale, jointly and severally (the one paying, the other to be absolved)

In the notice of opposition, the second respondent also on behalf of the first respondent makes the following averments. That he only became involved in the matter after the departure of the then substantive secretary. As a town clerk, he is limited in what he can perform. He cannot decide on his own on unbudgeted expenses and furthermore he is the acting and not the substantive town clerk. The engagements with the applicant were on the basis of the alternative and not the main relief. This process takes time and the issue affects the rights of thousands of home owners. This issue has been put before the first respondent and the consensus is that funds should be raised. In the course of meetings and engagements, the applicant had a change of heart. The applicant no longer desired compensation, that is the alternative relief.

In its answering affidavit, what is noted is that the applicant was unequivocal in its stance that it never elected or agreed to the compensation. It never waived its rights under the order in any manner whatsoever.

In the supplementary heads of argument filed the applicant located its argument on two principles. (1) that given that the applicant had an election at law, the impugned order is competent despite the grant of both the main and alternative relief as no principle precludes this and (2) the grant of both the main and the alternative relief has had no effect on the wilfulness of their contempt. It sought to distinguish the decision in *CABS vs Stone and ors*, SC-15-21 with the current matter. That contrary to the *CABS* matter, the impugned order gave the applicant an election

which was expressly exercised. The CABS judgment does not lay down a general principle that it is incompetent for the court to grant both the main and alternative relief. The fact that there is a main and alternative order has no bearing on the contempt of court. The first and second respondents have accepted the order and it is still extant. At the hearing, Mr. *Ochieng*, submitted as follows. He referred the court to *ZESA vs Clovegate Elevator* SC -69-23. It was observed that it was competent to award specific performance and damages in the alternative. The effect was to give the applicant an election. The respondents are aware of this fact. The respondents' capacity to comply has been pronounced by the courts. The main relief that the applicant has elected to enforce constitutes an order *ad factum praestandum.* The court gave orders in the main and in the alternative on the basis that they are competent. The respondents are aware of this. In annexure CM2, there is a record of the Mayor informing the Council that if they do not act, the applicant will enforce the order. The respondents simply do not accept the correctness of the order.

In the supplementary heads, the first and second respondents located the issues as follows. (1) Whether the relief sought by the applicant in its chamber application for contempt is competent ; and (2) the effect of the order in HCH 1244/23 on the current proceedings given its alternative nature. The order sought by the applicant does not show whether the contempt is in respect of the main or alternative relief. The relief was granted against the first respondent only and there is no explanation or justification why the second respondent has been cited. Further that the applicant has misconstrued the CABS decision. The reason why the Supreme Court set it aside was because two alternative reliefs has been placed before the court but one was erroneously granted and the alterative ignored. In its founding affidavit in the vindication matter, the applicant sought an alternative remedy for damages in the event that the respondent was found to have parted with possession of the land. Taking a cue from the *CABS,* matter, the court should decide the contempt for both the main and alternative relief. The court under the principle of ripeness, cannot be expected to hold the first and second respondents to be in contempt where there is alternative relief. At the hearing, Mr *Warara* submitted that a party that accepts an invitation to discuss a settlement cannot be taken to be

in contempt. At no point can it be said that the respondents conduct is consistent with an attitude of disdain.

Whilst pondering on this matter and the supplementary heads of argument, it occurred to me that perhaps, it was more excitement over the novel issue of whether or not a litigant can pick and choose a remedy and approach the court with a contempt of court application that was clouding my judgment. That issue was never before me. The issue of whether or not a court could competently grant main and alternative relief was also misguided as the order was extant and it was tantamount to a judge reviewing the order of another judge. My damascene moment came from the founding affidavit and submissions by Mr. *Ochieng* that the applicant elected to proceed by the main relief. I then came to the realisation that the court ought to deal with this matter precisely on that basis. The legal issue at hand would then be whether or not the first respondent should be found in contempt of court for the main relief.

With the above having been said, I will turn to the main heads of argument by the applicant and the respondents.

In the heads of argument, the applicant makes the following submissions. That the respondents have failed to comply with the order granted in HCH 1244/23. They were required to return the property by November 2024. They were also required to publish advertisements on the order within a period of ten days. This, they have also failed to do. The second respondent is cited because of his position as a town clerk. He is responsible for the proper management of the first respondent as per s 136 of the Urban Council's Act [Chapter *29:12*]. He also has a constitutional mandate ti uphold the rule of law. Where he has breached the order that has been brought personally to his attention, he is liable for incarceration- *Mjeni vs Minister of Health and Welfare, Eastern Cape,* 2000(4) SA 446 (TK HC) @454. The discussions that followed after the order was granted were on a without prejudice basis. The respondents have been made aware of the order and the various violations of it. Their conduct exhibits disdain and a deliberate disobedience of the order. Their insistence on compensation is misplaced. Although the order speaks to damages as an alternative, the applicant has opted for the main relief.

The first and second respondents, in the main heads locate the dispute on the issue of whether or not the applicant has proven elements of contempt. They submit that the applicant has failed to prove the elements of contempt because the respondents were not in wilful disobedience of the order. They place reliance on *Mukambirwa vs The Gospel of God Church International 1932,* SC 8/2014 as follows,

> 'Before holding a party to be in contempt of a court order, a court must be satisfied that there is a court order which is extant, that the order has been served on the individuals concerned and that the individuals in question know what it requires them to do or not do, that knowing what the order dictates, the individuals concerned deliberately and consciously disobeyed the order. In addition to the above the court must be satisfied that, not only was the order not complied with but also that the non-compliance on the part of the defaulting party was wilful and *mala fide*.''

They submit that whilst it is not disputed that the respondents had knowledge of the order, they deny that there was a deliberate and conscious disobedience of the order. The parties have met three times to try to resolve the matter. The applicant gave a clear indication that it had elected to receive compensation. The first respondent in pursuance, passed a resolution to compensate the applicant. The first respondent is raising the substantial amount of money for the compensation. The demolition will result in about 40% of the houses in Chinhoyi being demolished and this will leave hundreds of families without shelter.

Although the first and second respondents correctly identify the issue at hand, I will re-cast it as follows, are the first and second respondents in contempt of the court order in HCH 1244/23? I will also additionally consider whether or not they have a defence. I have already stated that the applicant seeks an order relating to the main relief. I conclude that they are not interested in the alternative relief.

As per rule 79 of the High Court Rules, 2021, addressing contempt requires initiating proceedings via a chamber application, which must incorporate the following:

a. The application should distinctly set forth the grounds of complaint.

b. An affidavit supporting the facts must accompany the application.

c. If the court acts on its own initiative, no affidavit is required, and notice is issued by the registrar.

Contempt of court is a critical legal mechanism designed to uphold the authority and dignity of the judiciary. It serves as a deterrent against the wilful and *mala fide*

non-compliance with court orders. In *Madzimbamuto* v *Musamadiya* HH 235/24 the court reiterated this position as follows:

> "Contempt of court is committed where one wilfully and *mala fide* refuses to comply with an order of court. The essentials are the following:
> 1. That there is a court order which is extant
> 2. That the order has been either served on the individuals concerned, or has come to their personal notice,
> 3. That the individual(s) in question know what it requires them to do or not to do, and
> 4. Knowing what that order dictates, the individuals concerned deliberately and consciously disobeyed the order. See *Borges* v *Shumba* HH 403/21 *Simba Mukambirwa & Ors* v *The Gospel of God Church International* SC 8/2014 *Batezat* v *Permassan* (Pvt) Ltd SC 49/09."

In *Minister of Lands and Others* v *Commercial Farmers Union* 2001 (2) ZLR 457 SC, the requirements of contempt were set out as stated in CJ MILLER's book on *Contempt of Court* as follows:

> "Before a finding of contempt of court can be made, it is necessary to determine whether there has been a factual breach of an order or undertaking on the part of the person brought before the court. This necessarily demands that the terms of the order be expressed in clear, unambiguous language, and insofar as possible, the person should know with complete precision what it is required to do or abstain from doing."

It is clear from the *Mukambirwa & Ors* v *The Gospel of God Church International* SC 8/2014 case (*supra*) that before a charge of contempt can succeed, the court order should be definite, clear, and precise in its terms so that it is not misunderstood. It should not give rise to various inferences and conclusions.

Contempt of court proceedings are designed to safeguard the authority, dignity, and effectiveness of the judicial process. A respondent may successfully raise a defence to an application for contempt where they are able to rebut the legal presumption of wilful and *mala fide* non-compliance with a court order. See *Haddow* v *Haddow* 1974 (2) SA 181 (R).

The requirements for contempt of court resonate through case law not only in Zimbabwe but in other jurisdictions.

In the South African case of *T.A.M.W* v *C.M.M* (2025/030666) [2025] ZAWCHC 217 on par 12, it was held that: -

> "It is also settled law in South Africa that for a contempt of court application to succeed, the applicant must demonstrate the following three requirements. First, an order was granted obliging the respondent to do certain things. Second, the respondent received notice of the order. Third, the respondent failed to comply with it. Once the applicant has established these three requirements, wilfulness and mala fides (bad faith) are presumed, and the respondent bears the evidentiary burden to establish reasonable doubt that his non-compliance was not

> wilful and/or mala fide. Should the respondent fail to discharge that burden, contempt will have been established."

Should the contemnor prove unsuccessful in discharging this evidential burden, contempt will be established. Therefore, the presumption rightly exists that when the first three elements of the test for contempt have been established, *mala fides* and wilfulness are presumed unless the contemnor is able to lead evidence sufficient to create a reasonable doubt as to their existence.

As stated already, there are defences to contempt proceedings that I will summarise below.

1. Disobedience or breach was not wilful

In proceedings for civil contempt, intention plays a key role. In *Karnec Investments (Pvt) Ltd & Anor* v *Econet Wireless (Pvt) Ltd* HH 261/16 the court remarked that, *"Central to contempt is not only the disobedience to a court order but also contumacious or stubborn and wilful disrespect for authority*." It must be proved that the disobedience of the order of the court or breach of the undertaking given to the court was wilful. Lack of intention is, therefore, a complete defence in such proceedings. See , *Scheelite King Mining Co.* (*Pvt*) *Ltd.* v *Mahachi* 1998 (1) ZLR 173 (H) where it was held that:

> "Before holding a person to have been in contempt of court, it is necessary to be satisfied both that the order was not complied with and that the non-compliance was wilful on the part of the defaulting party."

2. Order disobeyed is vague or ambiguous

The order alleged to have been breached must clearly and unequivocally state what should not be done. Thus, a party will not be guilty of contempt if the order is unclear, vague or ambiguous for example an essential detail is missing in the order. See *Minister of Lands & Ors* v *Commercial Farmers Union* (*supra*). In *casu,* the order is very clear.

3. Contemnor had no knowledge of the order

The contemnor must have knowledge of the order. See *Mangwiro and Others* v *City of Harare* (*supra*)*.* In the case of the *Aligarh Municipal Board* v *Ekka Tonga Mazdoor Union* [(1970) 3 SCC 98], the Supreme Court of India observed that:

> "It may also be pointed out that in order to justify action for contempt of court for breach of a prohibitive order, it is not necessary that the order should have been officially served on the party against whom it is granted if it is proved that he had notice of the order and he knew that it was intended to be enforced. Usually, the order should be served upon the person against whom the order has been passed. But if it has been proved to the satisfaction of the court that the person had actual knowledge of the order passed against him, he cannot escape the liability of contempt on the ground that a formal copy of the order was not served upon him."

This defence is only sustainable if there is no evidence demonstrating awareness of its existence and terms. Where actual notice can be proved to the satisfaction of the court, the absence of formal service will not shield the contemnor from liability. Conversely, if it cannot be established that the contemnor knew the order, contempt cannot properly lie, as wilful disobedience presupposes awareness of the obligation allegedly breached. In *casu,* the respondents are aware of the order.

4. Compliance with the order is impossible

If the contemnor can prove that the order is impossible to comply with due to any reason whatsoever, he will not be liable for contempt of court. To illustrate, it can be stated that the order is not practically possible to be executed due to paucity of time or due to circumstances beyond the control of the alleged contemnor – see *Gyani Chand* v *State of A.P* [2016 (6) RAJ 65].

5. Alternative remedy available

Since contempt is an extraordinary remedy, it should not be used whenever an alternative remedy is available. In *Shaik Mohiddin v Section Officer Karnataka Electricity Board* [1994 Cri. L.J (Kar HC) 3639].

In *casu,* it is common cause that there is an extant court order and that the respondents are aware of the order. The order is very clear on what the first respondent is required to do. Where I differ with the applicant however is on whether or not the first and second respondents have wilfully disobeyed the order. It is common cause that the parties met to discuss the matter. Correspondence on record reflects the nature of the discussions between the parties. Despite the assertion by the applicant that the meetings were on a without prejudice basis, the fact of the matter is that these were held and some point, the Ministry of Local Government and Public Works became involved. The fact that the issue was discussed in a meeting of the first respondent not only shows that they were aware of the seriousness of the issue and the obligation placed upon them but it also showed that they were

engaging on the issues. They cannot be taken to be an entity that after becoming aware, they folded their arms and waited. It is not also denied that the applicant had indicated that it was opting for the alternative relief, that is payment of damages. It was on this basis that the first respondent was engaging with the applicant. The applicant's legal practitioner in various correspondence also emphasized that applicant remained committed to pursuing an efficient resolution not only to the property in question but to another property where the court had also ordered compensation. That applicant changed its mind and 'elected' for specific performance does not take away the fact that the engagements were initially on the basis of compensation. In my view, the first respondent by its conduct has discharged the onus to show that it was not in wilful or *mala fide* disobedience of the order. The correspondence shows that it took the matter seriously including tabling the issue before a full council resulting in a resolution passed on the 20th of February 2025. It showed intention to comply with the order based on their negotiations with the applicant.

In considering the defences, it is my considered view that it has not been denied by the applicant that the property is occupied by several persons. This much, the applicant averred in its submissions before the court. I am cognisant of the fact that in HCH 1244/23, the court dealt with the matter and held that the non-joinder of the occupiers of the property was not fatal. Further, that the first respondent had taken them under its wing and had refused to disclose their names. Thus in the main relief, the first respondent had been directed to ensure that the occupiers were removed and that vacant possession be given to the applicant. Additionally in a manner of speaking that the occupiers bore personal rights against the first respondent. In my view however, it cannot be denied that the occupiers are on the property. They have rights not to be arbitrarily or summarily removed. In other words, it appears to me that specific performance may not be possible given the current state of affairs. In as much as the applicant insists on the main relief, it is noted that the issue of damages was on its mind in making the application under HCH 1244/23. On page 3 of the cyclostyled judgment in HH-172-24, the following passage appears,

> "The applicant makes it clear that should the respondent demonstrate that it has parted with possession or is unable to restore possession, the wrongfulness of the disposal of the property or the inability to render possession makes the respondent liable for damages. It is

> the applicant's case that disposal of the property was done with full knowledge and in wilful defiance of the applicant's ownership rights. The applicant has had the land valued and seeks damages in the sum of US$6 900 000 (Six Million Nine Hundred Thousand United States Dollars) and this relates to the value of the land alone in the event that the respondent is unable to restore the land. The applicant submitted that if the alternative claim succeeds and payment is made it will transfer the property to the respondent".

My reading is that the applicant was aware that the property was no longer available and took the extra step of having the land valued. The figure of six million, nine hundred thousand dollars in damages was not plucked from the air. The reason why the applicant sought an alternative remedy is because one was available and is still available. The applicant's legal practitioner went as far as wording the notice to the occupiers that was supposed to be published, this being a clear indication that applicant was fully aware that the property had been occupied by third parties. The correspondence by the applicant's legal practitioners to the Minister of Local Government and Public Works and to the respondents is replete with threats of eviction of the occupiers by the Sheriff as per part of the main relief obtained. This further reinforces the fact that the applicant was well aware of the status of the property and that it is occupied by third parties.

DISPOSITION

While I find that the first and second respondents were aware of the order and what they were supposed to do, they were not in wilful disobedience of the order nor did they act *mala* fide. The second respondent was not a party to the main matter but was merely cited as the person responsible for the day to day running of the first respondent. I also find that they have defences to the application in that the property is occupied by third parties, a fact that the applicant is aware of. The main relief therefore in HCH 1244/23 is impossible to enforce. I also find that the applicant has an alternative remedy. On costs, these are at the discretion of the court and in my view, an order of costs against the applicant on the ordinary scale is apt.

Accordingly, it is ordered as follows:-

1. The application be and is hereby dismissed.
2. The applicant shall pay costs.

KEVIN ARNOTT, legal practitioners for the applicant.

WARARA AND ASSOCIATES, legal practitioners for the respondents